

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH**

CRM-M-33799-2026
Date of decision: 15.06.2026

Parminder Singh Sangwan

...Petitioner

Versus

State of Haryana

...Respondent

CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA

Present: Mr. V.P. Sangwan, Advocate for the petitioner.

DEEPAK GUPTA, J. (ORAL)

By way of the present petition filed under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the petitioner seeks grant of anticipatory bail in case FIR No.235 dated 17.10.2025 registered under Sections 229(2), 318(4), 336(2), 336(3) and 340 of the Bharatiya Nyaya Sanhita, 2023 (corresponding to Sections 193, 420, 465, 468 and 471 IPC) at Police Station Bhiwani Civil Lines, District Bhiwani.

2. Learned counsel for the petitioner contends that the petitioner has been falsely implicated in the present case. It is submitted that the petitioner had never prepared or intentionally submitted any forged document before the Court. According to the learned counsel, the petitioner had suddenly fallen ill and had visited CHC Manoharpur, Jaipur, where he was allegedly advised bed rest for three days. It is further argued that the prosecution case rests entirely on documentary evidence, which is already in possession of the investigating agency and forms part of the Court record. Therefore, no recovery remains to be effected from the petitioner and custodial interrogation is not required. Learned counsel submits that the petitioner is ready to join investigation and cooperate with



the investigating agency and, therefore, deserves the concession of anticipatory bail.

3. I have heard learned counsel for the petitioner and perused the paper-book.

4. The record reveals that Criminal Appeal No. CRA-25-2025 filed by the petitioner was listed before the learned Additional Sessions Judge, Fast Track Court under the POCSO Act, Bhiwani on 10.09.2025. On the said date, the petitioner did not appear before the Court and instead sought exemption from personal appearance through his counsel by asserting that he was suffering from illness. In support of such prayer, a medical certificate purportedly issued by a doctor of CHC Manoharpur, Jaipur was produced before the Court.

5. The learned Appellate Court noticed discrepancies in the document and entertained doubts regarding its authenticity. Consequently, notice was issued to the concerned doctor. Upon appearance, the doctor categorically stated that the certificate neither had been issued by him nor did it bear his signatures. It was thus prima facie found that the medical certificate relied upon by the petitioner for securing exemption from appearance was a forged document. On the basis of the complaint made by the Reader of the Court, the present FIR came to be registered.

6. The allegations against the petitioner are of a serious nature. The accusation is not merely that a forged document was created, but that such document was consciously produced before a Court of law with the object of obtaining a judicial order. Any attempt to mislead a Court by producing fabricated documents strikes at the very foundation of the administration of justice and cannot be viewed lightly. Offences relating to fabrication and use of forged documents in judicial proceedings have a



direct bearing upon the sanctity and purity of the judicial process.

7. The contention that the case is based on documentary evidence and, therefore, custodial interrogation is unnecessary, cannot be accepted at this stage. The investigation is required to ascertain the source from which the forged certificate was procured, the identity of the person who prepared it, the manner in which it came into the possession of the petitioner and whether any other persons were involved in the commission of the alleged offences. These aspects can be effectively investigated only through a thorough interrogation of the accused and other connected persons. The mere fact that the forged document is available on record does not render the investigation complete.

8. The power to grant anticipatory bail is extraordinary in nature and is required to be exercised cautiously, particularly where the allegations disclose deliberate interference with the due administration of justice. While personal liberty is undoubtedly a valuable right, the same must be balanced against the societal interest in ensuring a fair and effective investigation into offences involving fabrication of evidence and use of forged documents before judicial forums.

9. This Court is of the considered opinion that the allegations levelled against the petitioner disclose a prima facie case. The investigation is still at a stage where the source and authorship of the forged certificate are required to be unearthed. Grant of anticipatory bail at this stage may impede the investigation and frustrate efforts of the investigating agency to trace the origin of the forged document and identify all persons involved in the commission of the alleged offences.

10. Having regard to the nature and gravity of the accusations, the apparent misuse of a forged document in judicial proceedings and the



necessity of a complete and effective investigation, this Court does not find it to be a fit case for grant of anticipatory bail.

11. Consequently, the present petition is dismissed.

12. However, any observation made herein shall be construed only for the purpose of deciding the present petition and shall not be treated as an expression on the merits of the case during investigation or trial.

15.06.2026

Yogesh

(DEEPAK GUPTA)
JUDGE

Whether speaking/reasoned:- Yes/No
Whether reportable:- Yes/No